

Bantugan cannot be added as a Doe defendant as Plaintiffs were aware of Bantugan, his supervision of Siguenza, and his ability to hire and terminate Siguenza at the time the original complaint was filed. (ROA 2, 15.) As the basis for this case is wrongful termination and discrimination, Plaintiffs were aware of facts to support Bantugan as a defendant yet did not include Bantugan in either the original or first amended complaints. Plaintiffs were therefore not “ignorant” of Bantugan’s name or facts which would support liability against Bantugan. Although Plaintiffs argue they did not know the relevant facts about Bantugan being COO of Nynes and then founding CCF at the same address as Nynes until 2026, thereby supporting potential alter ego relationships between all of the defendants, Plaintiffs had sufficient facts regarding Bantugan being Plaintiffs supervisor with the ability to terminate Plaintiffs. This is sufficient to support that Bantugan should have been named in this wrongful termination matter in the original complaint.

The motion is **DENIED** as to Bantugan.

Plaintiffs appear to have been ignorant of both the names and facts which might support liability on the parts of CCF and NHLLC. This includes the alter ego and successor liability allegations. The court finds no real prejudice as to the defendants which might otherwise overcome the requirement for the court to liberally permit amendments.

The motion is **GRANTED** as to CCF and NHLLC.

The court will allow for a final trial continuance and will reopen discovery as to the new corporate entities and the depositions which Plaintiffs identified in the motion for sanctions above. Parties shall come ready to discuss trial dates.

Plaintiffs shall give notice.

203	<i>Nguyen vs. Stahl</i>	Plaintiffs Quang Nguyen and Chowdhury Yeethnam's motion for order for service of summons by publication is DENIED without prejudice. There is insufficient evidence Plaintiffs took reasonable steps to determine the addresses of defendants Ian Stahl and Anita Stahl (Defendants). (See <i>Watts v. Crawford</i> (1995) 10 Cal.4th 743, 749, n. 5 [the term "reasonable diligence" denotes "a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney"].) Plaintiffs' counsel relied exclusively on the efforts of Elijah Banez of ABC Legal Services to show reasonable diligence. (Declaration of Dimitri D. Hurt ¶¶ 3-6.) The declarations of out-of-state declarant Banez are not signed under penalty of perjury under the laws of the State of California and are thus inadmissible. (Code of Civ. Proc. § 2015.5.) Furthermore, there is insufficient evidence of the existence of a cause of action against Defendants. (Code of Civ. Proc. § 415.50, subd. (a).) Counsel's single paragraph in his declaration is not based on personal knowledge, lacks foundation and therefore insufficient. (<i>Islamic Republic of Iran v. Pahlavi</i> (1984) 160 Cal.App.3d 620, 627; see also Hurt Decl. ¶ 2.) The court continues the 9/28/26 OSC re: dismissal to serve complaint to 1/19/27 at 8:45am in Dept. C24. Plaintiff shall give notice of this ruling.
204	<i>Saldana-Gonzalez vs. Kia America Inc.</i>	Plaintiffs Andres Saldana-Gonzalez, Maria Olimpia Saldana and the Estate of Andres Saldana-Sorto's motion to admit counsel Daniel D. Walker to appear pro hac vice is CONTINUED to 10/12/26 at 1:30pm in Department C24. There is no proof of service of the verified application and notice of hearing on all parties who have appeared in the action and on the State Bar of California as